

2.4.10 Replacement of "cell of a plant" by "plant"

In T 579/01 independent claim 1 and dependent claims 2 to 6 of the new main request were directed to a "vegetable plant", while the respective claims as granted were directed to a "cell in a vegetable plant". The board decided that **any** plant as subject-matter of claim 1 of the new main request fell within the protection conferred by a claim to "a cell of a plant", and finally that the "plant" now claimed was characterised by the same genetic features, as recited in the granted claim to "a cell of a plant". Also taking account of legislative developments in Europe in respect of the legal protection of biotechnological inventions (i.e. Art. 8.1 and 9 of Directive 98/44/EC), the board concluded that the amendment of the "cell of a plant" claim to a "plant" claim was not contrary to the requirements of Art. 123(3) EPC 1973.

2.4.11 Replacement of substance by device containing substance or substance with mechanical device

In T 352/04, claim 1 as granted had been directed to a haircare composition defined only by its components, whereas claim 1 of the main request pending on appeal included a variant that additionally characterised it as "present in the form of a nonaerosol hairspray with a mechanical spray device". Observing that the dependent claims as granted had similarly made no reference to any device features, the board held that the addition of this mechanical spray device extended the protection conferred in breach of Art. 123(3) EPC 1973. Its inclusion as a separate element also changed the category of the claim, as it now encompassed a device containing the cosmetic composition too. See also in this chapter II.E.2.7. "Change of claim category".

In T 1898/07 the appellant (patent proprietor) argued that a claim referring to a packaged kit containing the liquid composition of claim 1 as granted was in fact narrower in scope than a claim referring to the liquid composition, as this claim encompassed the liquid formulation in any possible container, vessel, package or reservoir. The board agreed with the appellant in so far as the scope of protection covered by a claim referring to a physical entity should be considered to encompass the physical entity in any possible package or container. However, it was self-evident that "a packaged kit" was a different physical entity than "a liquid composition". In the board's view the content of a package is not a characterising feature of the package per se. Thus, a procedural situation was created where an act, for instance the production of the box, package or other container, which did not infringe the patent as granted, became an infringing act as a result of an amendment after grant. It is precisely this situation which should be prevented by the requirements of Art. 123(3) EPC. A referral under Art. 112(1)(a) EPC was not justified since the board, which examined the teaching of cases T 579/01 and T 352/04 (amendment from cosmetic agent to combination of the agent with a mechanical device) referred to by the appellant, concluded that they did not apply in this case.

2.4.12 Replacement by aliud

In T 867/05, the product claims as granted defined a composition of matter (membrane material of claims 1 to 9 and permselective material for use in dialysis of claim 12),

whereas the amended product claims defined an apparatus (artificial kidney). The board considered that there had been a shift of the definition of the invention from a physical entity to a more complex physical entity which was not encompassed by the terms of the claims as granted. That shift implied that further components of an apparatus were encompassed by the terms of the present claims. This extended the protection conferred by claim 1 as granted to subject-matter which was foreign to that as granted (*aliud*), and so violated Art. 123(3) EPC. Likewise in T 1321/05 the board saw the combination of two physical entities ("graphic marking film bonded to a vehicle") as a new physical entity different from the previously claimed entity ("graphic marking film"), considered this subject-matter as an *aliud* and the amended claim thus contrary to Art. 123(3) EPC.

In T 547/08 the granted claim was directed to a user interface and screen display apparatus for a dialysis machine, the claim as maintained by the opposition division to a dialysis machine comprising user interface and screen display apparatus. In the board's view the scope of the claim as maintained had been **restricted** vis-à-vis that of the claim as granted since the subject-matter upheld explicitly comprised the dialysis machine as an additional feature. The board did not accept the appellant's arguments relating to the rights of the patent proprietor to sue for indirect or contributory infringement. In G 2/88 (OJ 1990, 93) it was clearly ruled that it was not necessary to consider the national laws of the contracting states in relation to infringement and that this issue was not relevant when deciding upon admissibility of an amendment under Art. 123(3) EPC. With respect to this question, it was rather appropriate to take into account that the protection conferred by a patent is determined by the terms of the claims, and in particular by the categories of the claims and their technical features, in accordance with Art. 69(1) EPC and its Protocol (G 2/88). The board distinguished its case from those of T 352/04 (change from a substance to a combination of the substance and a device) and T 867/05 (change from a substance A for use in a method X to a combination of a device B and the substance A) and rejected the appellant's argument that the scope of protection had been shifted to an "*aliud*" in breach of Art. 123(3) EPC.

The board in T 1296/11 held that – in contrast to, for example, T 352/04, T 867/05 and T 321/07 – there had been no change of claim category because the same electro-mechanical device was claimed after the amendment as before. Citing the conclusion reached in T 547/08, which had likewise involved the replacement of a specified purpose in the granted claim by a mandatory combination, it held that the protection conferred had not been extended within the meaning of Art. 123(3) EPC; on the contrary, the added features limited the protection.

For further cases, where the boards considered the amended claim to define an *aliud*, see e.g. T 1675/08, T 1779/09, T 1701/10, T 1578/13 and T 2181/13; conversely for cases where the boards saw no shift to an *aliud*, see e.g. T 820/98, T 1818/11 and T 1646/12.

2.4.13 Narrowing down a generic class or list of chemical compounds; open claims ("comprising"); sequential drafting ("cascade")

As summarised in e.g. T 1384/16, the problem underlying the Art. 123(3) objection dealt with in the following decisions arises when a granted claim directed to a composition

defined in an open manner and specifying the presence of a component belonging to a class or list of compounds in a quantity defined by a range is amended by limiting the definition of the class or list of compounds. In such a case, in spite of the apparent limitation, the result of the amendment is that the deleted compounds, which according to the granted claim had to be present in an amount within a specific range, can still be present, but in an unspecified manner. The protection conferred by the amended claim then extends beyond that of the granted claim, contrary to the requirement of Art. 123(3) EPC.

In T 2017/07 the board stated that a composition which is specified in a claim to comprise a component in an amount which is defined by a numerical range of values is characterised by the feature which requires the presence of the component within that range, as well as by the **implicit proviso** which excludes the presence of that component in an amount outside of that range. Consequently, the amount of that component present in the composition must not exceed the upper limit of the numerical range indicated. An amendment restricting the breadth of that component, for instance by narrowing down a generic class or a list of chemical compounds defining that component, has the consequence of no longer requiring the presence within that numerical range of those chemical compounds no longer encompassed by the restricted definition of that component and, thus, of limiting the scope of this implicit proviso. A composition which is defined as comprising the components indicated in the claim is open to the presence of any further components, unless otherwise specified. Thus, in a claim directed to an openly defined composition, the restriction of the breadth of a component present therein may have the effect of broadening the scope of protection of that claim, with the consequence that in opposition/appeal proceedings such amended claim may extend the protection conferred by the granted patent (Art. 123(3) EPC). The considerations in T 2017/07 were confirmed in e.g. T 9/10 and T 2430/17 (in which a list of three families of polymers as defined in claim 1 as granted was limited by the deletion of two alternatives, thus removing the implicit proviso for these two alternatives).

In T 999/10 the board considered that sequential drafting (formulation "en cascade") in an open claim ("comprising"), i.e. retaining in an amended claim the broad definition of claim 1 and adding, by means of the expression "and in which ...", an additional limitation, avoided the situation contemplated in T 2017/07, where an amendment initially made with a view to limiting a claim in fact extended the scope of protection it conferred (Art. 123(3) EPC).

In T 1360/11 the board confirmed that in a case where a granted claim, directed to a composition defined in an open manner and including the presence of a component belonging to a class or list of compounds in a quantity defined by a range, was later amended by limiting the definition of the class or list of compounds, in spite of the apparent limitation, the wording of the granted and amended claims might be such that the amendment results in an extension of the protection conferred. The problem was well known in the case law, see e.g. T 172/07, T 2017/07, T 832/08, T 1312/08, T 869/10, T 287/11. The board observed that by means of inserting a **double condition** the claim may not extend the protection conferred by the patent. A possible infringement of the requirements of Art. 123(3) EPC might be avoided by including in the amended claim a **quantitative condition on the limited class or list of compounds** and an **additional**

constraint on the total amount of compounds belonging to the broader class or list. See also T. 514/14 and T. 1063/15.

In T. 491/13 the board distinguished the case at issue from the above cited cases, since it did not relate to a restriction from a list of compounds comprising one or more of said compounds (here the solvent) or a mixture thereof, or to a list defined broadly as a general chemical class or a broad chemical formula. In addition, the situation also did not apply to the case at issue, since the protection conferred by claim 1 as granted extended to compositions containing the selected component in amounts inside the defined range and potentially one or more supplementary unselected compounds in any range.

In T. 306/14 the board considered that possible ways out of the situation were a sequential drafting of the claim (formulation "en cascade" as in T. 999/10) or a "double condition" (as in T. 1360/11). In the case in hand, the appellant had chosen the second possibility and amended the claim by including a further limitation of the total amount of the milled filler. The board agreed with the respondent/opponent that the claims were not identical to the claims in decision T. 1360/11, wherein the added condition also specified the amount of the specific components, but the idea was exactly the same. Adding the second condition ensured that the total amount of milled filler remained within the scope of the granted claims.

However, see also T. 2447/18, which illustrates that such claim formulations may contravene Art. 123(2) EPC.

2.5. Additions

2.5.1 Addition of technical features defining the invention more narrowly

In the case of a change in the technical features of the invention, if the technical features of the claimed invention after amendment are more narrowly defined, the extent of the protection conferred is less (G. 2/88, OJ 1990, 93, point 4.1 of the Reasons).

In T. 970/17 claim 1 of the third auxiliary request included all the features of claim 1 as granted but also several additional technical features. Both claims were product claims. The board concluded that claim 1 of the third auxiliary request had a narrower scope of protection than claim 1 as granted (see G. 2/88, point 4.1 of the Reasons). The opponent had argued that it was not allowable under Art. 123(3) EPC to claim a physical entity which was different from the physical entity claimed in the patent as granted (here: claim 1 of the third auxiliary request was directed to a vascular access port comprising the septum according to claim 1 as granted). The board, however, held that what mattered was not what the first technical feature in a claim was, but rather what technical features the claims included in their totality. In the board's view, the opponent's arguments relating to possible differences in the German patent law on contributory infringement did not change the above assessment. There was a difference between the "extent of the protection conferred" by a patent under Art. 69 EPC and the "rights conferred" by a patent under Art. 64 EPC.

2.5.2 Reducing scope of claim by adding embodiments to a negative feature

In T 363/11 the board considered that the feature concerned was a negative feature, in the sense that it defined embodiments which were excluded from the claim. Since after the amendment more embodiments were excluded from claim 1 of the request than from claim 1 as granted, its scope was reduced vis-à-vis granted claim 1 and the requirements of Art. 123(3) EPC were satisfied.

2.6. Transposition of features within claims

In T 16/86 the board pointed out that it was the subject-matter of the claim as a whole which embodied the invention. Therefore, in so far as a change in the position of a feature inside a claim did not alter its meaning, the extent of protection conferred remained unchanged and such an amendment contravened neither Art. 123(2) nor Art. 123(3) EPC 1973.

In T 160/83 the board had no objection to the appellants' amendment of the characterising clause so as to include a feature which was previously in the preamble but not shown in the document representing the closest state of the art.

In T 96/89 the board again allowed the transposition of features from the preamble of a claim to its characterising portion. This did not alter the subject-matter claimed, and thus did not extend the scope of protection. Nor was it in breach of Art. 123(3) EPC 1973 if terms were first generalised in the preamble, then trimmed back in the characterising portion to the subject-matter originally disclosed. R. 29(1) EPC 1973 required that claims be delimited against the nearest prior art; before the preamble to an independent claim could be drafted at all it was often necessary to select from two restrictive terms (the subject-matter claimed and the closest prior art) a general term covering both.

In T 49/89 the subject-matter of granted claim 1 had been limited during opposition proceedings to a special embodiment according to granted dependent claim 2. The board held that the protection had not been extended because new claim 1 indicated all the features in granted claim 1 and the newly incorporated features were merely elaborations on those contained in granted claim 1. The extent of protection conferred by a European patent was determined by the content of all claims, not that of one or several only. Thus, for example, even though an independent claim lacked novelty a claim dependent on it could still be valid and the patent proprietor could restrict himself to that claim. It was, moreover, irrelevant when determining the extent of protection whether features were referred to in the prior art portion or characterising portion. The transposition of information from one to the other did not therefore contravene Art. 123(3) EPC 1973 (T 579/01, T 411/02, T 250/02, T 1898/07).

2.7. Change of claim category

In G 2/88 (OJ 1990, 93) the Enlarged Board stated that a change of category of granted claims in opposition proceedings was not open to objection under Art. 123(3) EPC 1973, if it did not result in extension of the protection conferred by the claims as a whole, when